

Bundelkhand University Jhansi Thru' Its Registrar v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 28 July 2025 · 2025:AHC:126537-DB · Writ - C No. 23044 of 2015 · **Writ disposed of; consigned to record as no cause of action survives; liberty to seek recall; Clause 5.7(d) demand not decided.**

HEADNOTE

A consumer challenged a 7 February 2015 additional demand for 3 October 2009 to 29 September 2013 after a September 2013 inspection found one phase of the meter not recording energy and the meter was replaced. On 23 April 2015 the Division Bench recorded Clause 5.7(d) of the U.P. Electricity Supply Code, 2005 — billing between the last reading and replacement of a defective meter on the average consumption and average maximum demand of the three billing cycles prior to that last reading — called for the licensee's justification of a four-year charge, and stayed recovery on the demand notice. After listings and adjournments, the writ appeared from 14 July 2025 on the warning list of oldest pending cases. On 28 July 2025 none appeared for the petitioner even in the revised call. The Court found no cause of action survived, consigned the matter to record, disposed of the writ, and granted liberty to apply for recall, variation or modification. Clause 5.7(d) and the additional demand were not decided.

FACTUAL SUMMARY

Bundelkhand University, Jhansi, through its Registrar, challenged an additional demand bill dated 7 February 2015 raised for 3 October 2009 to 29 September 2013. An inspection in September 2013 had found that one phase of the University's meter was not recording energy; the meter was replaced. On 23 April 2015 the University's case was that Clause 5.7(d) of the U.P. Electricity Supply Code, 2005 confines billing for the period between the last reading and replacement of a defective meter to the average of the three billing cycles prior to that last reading, so a four-year additional demand was not justified.

The Division Bench stayed recovery on the 7 February 2015 notice and called for the Power Corporation's instructions. After listings, extensions of the interim, and adjournments from 2015 through 2023, the writ appeared from 14 July 2025 on the warning list of oldest pending cases. On 28 July 2025 none appeared for the petitioner even in the revised call.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.7

defective-meter additional demand; three-cycle average recited; not construed

HOLDING

On 23 April 2015 the Court recorded that an inspection in September 2013 found one phase of the meter not recording energy, the meter was replaced, and an additional demand dated 7.2.2015 was raised for 3.10.2009 to 29.9.2013. It recited Clause 5.7(d) of the U.P. Electricity Supply Code, 2005 — billing between the last reading and replacement of a defective meter on the average consumption and average maximum demand of three billing cycles prior to the last reading — directed the licensee's counsel to take instructions justifying a four-year charge, listed the writ, and stayed recovery on the 7.2.2015 notice. Those points were never decided.

¶ order of 23.4.2015

QUALIFIER

Interlocutory 23.4.2015 sitting; Clause 5.7(d) recited, not construed.

FLAG Thin order-sheet. The 23.4.2015 sitting (Tarun Agarwala and Amar Singh Chauhan, JJ.) is unnumbered. Catalog hits UP-2005::5.7(g), UP-2005::8.5, UP-2005::16.1.4 and uue-assessment-at-1.5x-tariff-not-thrice are not used; the Court cited 5.7(d), not 5.7(g), theft or unauthorised-use assessment.

HOLDING-UNIT · OFFTOPIC::no-cause-of-action-survives-consigned-to-record

long-pending writ consigned to record; none appearing

HOLDING

The writ had been on the warning list of oldest pending cases for priority hearing from 14 July 2025. None appeared for the petitioner even in the revised call. Upon perusal of the record the Court held that no cause of action survived, consigned the matter to record, disposed of the writ, and granted liberty to apply for recall, variation or modification if the petitioner took the view that the cause of action still survived. The 7.2.2015 demand and Clause 5.7(d) were not adjudicated. ¶ 1-6

FLAG Operative order dated 28.7.2025 (Shekhar B. Saraf and Praveen Kumar Giri, JJ.), Neutral Citation 2025:AHC:126537-DB. Intermediate sittings only listed, extended the 23.4.2015 stay, or adjourned.

PRINCIPLE TAGS

long-pending-writ-consigned-to-record-no-cause-of-action-survives A years-old writ on the warning list of oldest pending cases, with none appearing for the petitioner even in the revised call and no surviving cause of action on the record, was consigned to record and disposed of, with liberty to seek recall, variation or modification. ¶ 1-6

no-meter-billing-on-three-months-average-clause-5.7 Clause 5.7(d) was recited as confining defective-meter billing between last reading and replacement to the average of three billing cycles; the Court asked the licensee to justify a four-year additional demand and stayed recovery, but never decided whether that average rule barred the 7.2.2015 bill. ¶ order of 23.4.2015

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 5.7(D) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 CONFINED THE ADDITIONAL DEMAND TO THE AVERAGE OF THREE BILLING CYCLES PRIOR TO THE LAST READING

Recited on 23.4.2015; instructions sought; never construed. ¶ order of 23.4.2015

NOT DECIDED — VALIDITY AND PERIOD OF THE ADDITIONAL DEMAND DATED 7.2.2015 FOR 3.10.2009 TO 29.9.2013

The Court asked the licensee to justify charging four years after one phase of the meter was found not recording; the 28.7.2025 consignment left the demand unadjudicated. ¶ order of 23.4.2015